

HOUSE No. 3391

The Commonwealth of Massachusetts

PRESENTED BY:

Thomas W. Moakley

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to government surplus supply.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Thomas W. Moakley</i>	<i>Barnstable, Dukes and Nantucket</i>	<i>1/17/2025</i>
<i>Dylan A. Fernandes</i>	<i>Plymouth and Barnstable</i>	<i>7/13/2025</i>

HOUSE No. 3391

By Representative Moakley of Falmouth, a petition (accompanied by bill, House, No. 3391) of Thomas W. Moakley relative to government surplus supply. State Administration and Regulatory Oversight.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to government surplus supply.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 General Laws, Part I Title III Chapter 30B the Uniform Procurement Act Section 15(a) is
2 hereby amended by adding after section (g):-

3
4 “(h) Notwithstanding any other requirement of this section, a governmental body may,
5 unless otherwise prohibited by law, dispose of a tangible supply no longer useful to the
6 governmental body but having resale or salvage value, using written procedures approved by the
7 governmental body, provided the written procedures clearly identify the tangible supply and the
8 interest served by the manner of disposal described therein.”